

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Chelsea Yogerst	Team: Squad #12	CCRB Case #: 201604637	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 05/30/2016 8:36 PM	Location of Incident: West 135th Street and Lenox Avenue	18 Mo. SOL 11/30/2017	Precinct: 32		
Date/Time CV Reported Tue, 05/31/2016 10:34 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/31/2016 10:34 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Dinuzzo	13012	952689	PSA 5
2. SGT Brian Ohanlon	2176	935417	PSA 5

Officer(s)	Allegation	Investigator Recommendation
A . SGT Brian Ohanlon	Abuse: Sergeant Brian O'Hanlon stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Unsubstantiated
B . POM Robert Dinuzzo	Abuse: Police Officer Robert Dinuzzo stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Unsubstantiated
C . POM Robert Dinuzzo	Discourtesy: Police Officer Robert Dinuzzo spoke discourteously to § 87(2)(b) and § 87(2)(b)	C . Substantiated
D . POM Robert Dinuzzo	Abuse: Police Officer Robert Dinuzzo searched the vehicle in which § 87(2)(b) was an occupant.	D . Exonerated
E . POM Robert Dinuzzo	Abuse: Police Officer Robert Dinuzzo interfered with § 87(2)(b)'s use of a recording device.	E . Unsubstantiated
F . POM Robert Dinuzzo	Abuse: Police Officer Robert Dinuzzo damaged § 87(2)(b)'s property.	F . Unsubstantiated
G . POM Robert Dinuzzo	Abuse: Police Officer Robert Dinuzzo threatened § 87(2)(b) with the use of force.	G . Unsubstantiated
H . SGT Brian Ohanlon	Discourtesy: Sergeant Brian O'Hanlon spoke discourteously to § 87(2)(b)	H . Substantiated
I . POM Robert Dinuzzo	Abuse: Police Officer Robert Dinuzzo threatened § 87(2)(b) with the use of force.	I . Unsubstantiated
J . POM Robert Dinuzzo	Abuse: Police Officer Robert Dinuzzo questioned § 87(2)(b)	J . Unsubstantiated
K . POM Robert Dinuzzo	Abuse: Police Officer Robert Dinuzzo threatened to arrest § 87(2)(b)	K . Unsubstantiated
L . POM Robert Dinuzzo	Abuse: Police Officer Robert Dinuzzo frisked § 87(2)(b)	L . Substantiated
M . POM Robert Dinuzzo	Abuse: Police Officer Robert Dinuzzo searched § 87(2)(b)	M . Substantiated
N . SGT Brian Ohanlon	Abuse: Sergeant Brian O'Hanlon searched the vehicle in which § 87(2)(b) was an occupant.	N . Substantiated
O . POM Robert Dinuzzo	Abuse: Police Officer Robert Dinuzzo searched the vehicle in which § 87(2)(b) was an occupant.	O . Substantiated
P . POM Robert Dinuzzo	Abuse: Police Officer Robert Dinuzzo searched § 87(2)(b)'s bag.	P . Substantiated

Officer(s)	Allegation	Investigator Recommendation
Q . SGT Brian Ohanlon	Abuse: Sergeant Brian O'Hanlon interfered with § 87(2)(b)'s use of a recording device.	Q . Alleged Victim Uncooperative
R . SGT Brian Ohanlon	Abuse: Sergeant Brian O'Hanlon threatened to damage § 87(2)(b)'s property.	R . Alleged Victim Uncooperative
S . SGT Brian Ohanlon	Abuse: Sergeant Brian O'Hanlon threatened to arrest § 87(2)(b)	S . Alleged Victim Uncooperative
§ 87(4-b) § 87(2)(g)	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Case Summary

On May 31, 2016, § 87(2)(b) filed this complaint with the CCRB via the telephone.

On May 30, 2016, at approximately 8:36 p.m., § 87(2)(b) and his friend § 87(2)(b) were driving down West 135th Street and Lenox Avenue in Manhattan when their vehicle was pulled over by Police Officer Robert Dinuzzo and Sergeant Brian O’Hanlon, both of PSA-5 **(Allegations A and B)**. PO Dinuzzo allegedly said, “Give me your fucking license and registration” to § 87(2)(b) **(Allegation C)**. PO Dinuzzo allegedly said, “Shut up, I am not fucking talking to you” and “I don’t give a fuck” to § 87(2)(b) **(Allegation C continued)**. PO Dinuzzo reached his arm into § 87(2)(b) vehicle and attempted to obtain his license and open up the vehicle door **(Allegation D)**. PO Dinuzzo reached into the vehicle, grabbed § 87(2)(b) hand and caused his phone to stop recording **(Allegation E)**. PO Dinuzzo allegedly damaged § 87(2)(b) phone **(Allegations F)**. PO Dinuzzo allegedly said, “Get out of the fucking car or I am going to take you out of the fucking car” **(Allegation C continued & Allegation G)**. Sgt. O’Hanlon said “Get out of the fucking car” **(Allegation H)**. PO Dinuzzo allegedly said, “Put your fucking hands on the car” and “I am going to make a show and body slam you on this car **(Allegation C continued & Allegation I)**. PO Dinuzzo allegedly asked § 87(2)(b) if he had any weapons **(Allegation J)**. PO Dinuzzo frisked and searched § 87(2)(b) **(Allegations K and L)**. PO Dinuzzo allegedly threatened to arrest § 87(2)(b) **(Allegation M)**. Sgt. O’Hanlon and PO Dinuzzo searched § 87(2)(b) vehicle and a bag there within **(Allegations N-P)**. PO Dinuzzo allegedly said, “I can do whatever the fuck I want” **(Allegation C continued)**. Sgt. O’Hanlon allegedly interfered with § 87(2)(b) s ability to record, threatened to damage his phone and threatened to arrest him **(Allegations Q-S)**. § 87(2)(b) and § 87(2)(b) were not arrested and did not receive any summonses. § 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

This case exceeded 90 days because of the time that it took to identify the subject officers.



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§ 87(2)(b) provided video footage that he recorded on his cell phone and captured the incident.

§ 87(2)(g)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was suitable for mediation, but § 87(2)(b) rejected it.
- § 87(2)(b) and § 87(2)(b) did not file a Notice of Claim (12 BR).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officers CCRB Histories

- This is § 87(2)(b) third CCRB complaint. § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b) This is § 87(2)(b)'s first CCRB complaint (21 BR).
- PO Dinuzzo has been a member of the force for four years and has five allegations in three cases. In case 201407692, physical force and arrest allegations were substantiated and the Board recommended Command Discipline A; he received no disciplinary action. § 87(2)(g).
- Sgt. O'Hanlon has been a member of the service for twelve years and has four allegations in three cases. Of these complaints, there are no substantiated allegations § 87(2)(g).

Potential Issues

§ 87(2)(b) provided a phone statement, but was uncooperative with providing a sworn statement (11 BR).

Recommendations

Allegation A-Abuse of Authority: Sergeant Brian O'Hanlon stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation B-Abuse of Authority: Police Officer Robert Diunzzo stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) stated that he was driving down § 87(2)(b) when he first observed the officers' unmarked vehicle. The officers drove to the right of him for approximately three blocks and behind him for approximately ten blocks before pulling him over. § 87(2)(b) denied that he committed any traffic infractions. Towards the end of the incident, § 87(2)(b) asked PO Dinuzzo why he had been pulled over. In response, PO Dinuzzo told him that he had failed to signal, had been speeding and had cut his vehicle off. § 87(2)(b) received a warning and was not arrested or summonsed for the moving violations.

§ 87(2)(b) corroborated § 87(2)(b) testimony and stated that § 87(2)(b) did not commit any traffic infractions prior to being pulled over.

PO Dinuzzo testified that he was driving directly behind § 87(2)(b) vehicle when he observed him change lanes without signaling. PO Dinuzzo believed that § 87(2)(b) may have also been speeding, but he could not be sure. There was nothing else that brought his attention to § 87(2)(b) vehicle and no additional reasons why he was pulled over. PO Dinuzzo used his discretion and decided not to issue § 87(2)(b) a summons for the traffic violations because § 87(2)(b) had become more rational and was not acting hostile towards him towards the end of the incident.

Sgt. O'Hanlon corroborated PO Dinuzzo's testimony with the only exception being that he made the ultimate decision to use his discretion and let § 87(2)(b) go with a warning because he had become compliant and had only committed moving violations.

§ 87(2)(g)
§ 87(2)(b) PO Dinuzzo noted in his memo book (18 BR) that they pulled § 87(2)(b) vehicle over because he was speeding and failed to signal. § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as **unsubstantiated**.

Allegation C-Discourtesy: Police Officer Robert Dinuzzo spoke discourteously to § 87(2)(b)

and § 87(2)(b)

§ 87(2)(b) stated that as PO Dinuzzo approached his vehicle, he took out his license and registration and held them in his left hand. PO Dinuzzo immediately requested his license and registration. In response, § 87(2)(b) asked PO Dinuzzo why § 87(2)(b) had been pulled over and why he needed his license and registration. PO Dinuzzo said, “Give me your fucking license.” Once PO Dinuzzo opened the vehicle door, § 87(2)(b) remained seated in his vehicle for four to five more seconds before PO Dinuzzo said, “Get out of the fucking car or I am going to take you out of the fucking car.” As PO Dinuzzo was instructing § 87(2)(b) to put his hands on top of his vehicle, PO Dinuzzo stated, “Put your fucking hands on the car.” When § 87(2)(b) told PO Dinuzzo that he did not give him consent to search his vehicle, PO Dinuzzo stated, “I can do whatever the fuck I want.”

§ 87(2)(b) stated that when PO Dinuzzo first approached the vehicle, § 87(2)(b) asked him why they had been pulled over. In response, PO Dinuzzo said, “I don’t give a fuck” and requested his license and registration. When he asked PO Dinuzzo why he needed § 87(2)(b) license and registration, PO Dinuzzo said, “Shut up, I am not fucking talking to you” and “I don’t give a fuck.” § 87(2)(b) stated that PO Dinuzzo said, “Get the fuck out of the car” and “I’m not fucking playing” to § 87(2)(b)

§ 87(2)(b) was not filming at this time.

PO Dinuzzo did not recall, but stated that it was possible that he made the alleged statements. PO Dinuzzo testified that he did instruct § 87(2)(b) to provide his license, to exit the vehicle and to put his hands on top of the vehicle, but did not recall using any profanity while issuing the commands.

Sgt. O’Hanlon denied hearing PO Dinuzzo make the alleged statements and did not recall him using any profanity during the incident.

Patrol Guide Procedure 203-09 requires that officers must be courteous and respectful during their interactions with the public (06 BR).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **substantiated**.

Allegation D-Abuse of Authority: Police Officer Robert Dinuzzo searched the vehicle in which § 87(2)(b) **was an occupant.**

Video footage depicts PO Dinuzzo reaching his left arm through the drivers’ side window and attempting to grab documentation that § 87(2)(b) is holding in his left hand. § 87(2)(b) pulls the documentation away from PO Dinuzzo’s grasp. § 87(2)(b) can then be heard saying, “Give

him the ID” seven times, before reaching his arm over § 87(2)(b) lap and saying, “Take the ID” an additional four times. § 87(2)(b) shakes his head as to say, “No.” PO Dinuzzo opens up the vehicle door from the outside and says, “Get out of the car now.” In response, § 87(2)(b) says, “We didn’t do nothing” and “Sir, he gave him the ID.”



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§ 87(2)(b) stated that PO Dinuzzo asked for his license and registration approximately three times, but refused to tell him why he had stopped his vehicle. § 87(2)(b) then attempted to call 911 because of how PO Dinuzzo was acting, but the calls did not go through. PO Dinuzzo reached his left hand into the vehicle and attempted to grab § 87(2)(b) license and registration, but § 87(2)(b) snatched his hand back and asked PO Dinuzzo what he was doing. PO Dinuzzo then removed his hand from the vehicle, instructed § 87(2)(b) to get out of the vehicle, and attempted to open the vehicle door from the outside. When PO Dinuzzo realized that the vehicle door was locked, he reached back into the vehicle, unlocked the vehicle door from the inside and opened the door.

PO Dinuzzo testified that he reached into the driver’s side window of the vehicle for approximately two seconds after § 87(2)(b) refused to comply with multiple orders to provide his license and exit the vehicle. PO Dinuzzo felt it was necessary to remove § 87(2)(b) from the vehicle because of his combative attitude, which included dismissing his lawful orders. Once he reached into the vehicle, PO Dinuzzo grabbed onto § 87(2)(b) arm and then attempted to open up the vehicle door from the inside, so that § 87(2)(b) could be assisted out of the vehicle. PO Dinuzzo did not recall trying to snatch § 87(2)(b) license and registration from his hand, but stated that had he done so, it would have been because § 87(2)(b) refused to provide the requested documentation. PO Dinuzzo did not recall § 87(2)(b) ever making an effort to provide his license and registration and stated § 87(2)(b) could have been arrested for obstructing governmental administration because he refused to provide the requested identification. When presented with the video footage, PO Dinuzzo explained that § 87(2)(b) held his license in his hand, rather than providing it. PO Dinuzzo confirmed that he reached into the vehicle in an attempt to take the license from his hand, but was unsuccessful because § 87(2)(b) ripped the license back away from him. PO Dinuzzo described this as an aggressive action that he took to be threatening. PO Dinuzzo then made the decision to remove § 87(2)(b) from the vehicle because he was making him nervous and denied there were any additional reasons that he reached into the vehicle at this time.

Sgt. O’Hanlon testified that when he first approached the passenger side of the vehicle, he heard PO Dinuzzo arguing with § 87(2)(b) but because they were near a busy intersection and he was unable to see over the top of § 87(2)(b) vehicle, he did not know what exactly was going on. Although he could not hear what they were arguing about specifically, both § 87(2)(b) and PO Dinuzzo’s voices were raised. Sgt. O’Hanlon denied hearing PO Dinuzzo issue § 87(2)(b) any commands and did not recall if § 87(2)(b) was holding anything in his hands such as his license or his cell phone. Sgt. O’Hanlon did not recall PO Dinuzzo reaching into the vehicle or attempting to grab § 87(2)(b) license or registration, even after being presented with the video footage of him doing so. He also denied seeing PO Dinuzzo reach into the vehicle and attempt to open up the vehicle door from the inside. During this time, Sgt. O’Hanlon was dealing with § 87(2)(b) who was speaking loudly and was upset about why they were being pulled over and

harassed. Once the incident ended, PO Dinuzzo informed Sgt. O'Hanlon that when he initially approached the vehicle, § 87(2)(b) refused to provide his identification.

Patrol Guide procedure 209-09 states an officer must establish the identity of that individual while issuing an individual a summons. In the case an officer has doubts in regards to the identity of the violator; an officer should remove the individual to the command to investigate his/her identity (16 BR). N.Y.S Penal Law, Section 195.05 states that a person is guilty of obstructing governmental administration when he or she intentionally obstructs or prevents the administration of the law (14 BR). According to People v. Hernandez 238, AD2d 131 (1st Dept. 1997), a vehicle search has taken place when an officer breaches the plane of a car doorway to conduct a visual inspection (15 BR).

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **exonerated**.

Allegation E-Abuse of Authority: Police Officer Robert Dinuzzo interfered with § 87(2)(b) use of a recording device.

Allegation F-Abuse of Authority: Police Officer Robert Dinuzzo damaged § 87(2)(b) s property.

Video footage depicts PO Dinuzzo opening up the vehicle door from the outside and saying, "Get out of the car now." § 87(2)(b) can be heard in the background saying, "Take the ID" and "Sir, he gave you the ID." § 87(2)(b) tells PO Dinuzzo that he is "doing too much." PO Dinuzzo instructs § 87(2)(b) to get out of the vehicle two more times, before leaning his head and upper torso into the vehicle. PO Dinuzzo then reaches towards the recording device and the recording goes out of focus for three seconds before stopping completely. During those three seconds, voices can be heard saying, "Yo, sir."



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§ 87(2)(b) stated that as soon as PO Dinuzzo opened up the vehicle door, he reached back into the vehicle and smacked § 87(2)(b) right hand, which was holding his phone that he was using to record. This caused the phone to fall from § 87(2)(b) hand and onto the seat, where it remained during the incident. § 87(2)(b) denied that PO Dinuzzo said anything to him about the fact that he was recording. Once the knock occurred, § 87(2)(b) remained seated in his vehicle for four to five more seconds before exiting the vehicle on his own. When § 87(2)(b) returned to his vehicle at the conclusion of the incident, he realized that the recording had stopped and the phone screen had cracked as a result of hitting the stick shift.

§ 87(2)(b) corroborated that PO Dinuzzo reached into the vehicle window and hit § 87(2)(b) phone out of his hand, causing the phone to hit the stick shift and crack.

PO Dinuzzo testified that when he reached back into the vehicle, § 87(2)(b) was holding his phone in his hand. PO Dinuzzo could not recall if he smacked the hand that § 87(2)(b) was using to hold the cell phone or if he knocked the phone out of § 87(2)(b) hand, but stated that it was possible. When asked if he caused the phone recording to stop at any point, he testified that he may have because the phone was put down when § 87(2)(b) was asked to step out of the vehicle. PO Dinuzzo could not recall if he removed the cell phone from § 87(2)(b) hand or if § 87(2)(b) put the cell phone down himself and did not recall if the recording continued or stopped. PO Dinuzzo also did not recall if the phone hit the stick shift, but denied seeing any the phone with a crack or any additional damage. PO Dinuzzo did not recall if he ever told § 87(2)(b) to stop using his cell phone, but denied preventing him from recording in any way other than having him step out of the vehicle. When presented with the video footage, PO Dinuzzo explained that after he opened up the vehicle door, he could be heard asking § 87(2)(b) three or four times to exit the vehicle, but he refused. According to PO Dinuzzo, if § 87(2)(b) had exited the vehicle the first time, he would not have had to reach back into the vehicle. PO Dinuzzo then confirmed that he could be seen reaching into the vehicle and grabbing onto § 87(2)(b) arm, which resulted in a disruption in the recording. Given that PO Dinuzzo had already asked § 87(2)(b) to step out of the vehicle three or four times, but had failed to comply, PO Dinuzzo reached into the vehicle and grabbed onto § 87(2)(b) arm so that he could remove him from the vehicle, even though § 87(2)(b) happened to be holding a phone to record. PO Dinuzzo denied that he purposely tried to interfere with the recording and confirmed that the only reason that he made the movement seen in the footage was to remove § 87(2)(b) from the vehicle.

Sgt. O'Hanlon denied hearing PO Dinuzzo issue § 87(2)(b) any commands and did not recall seeing § 87(2)(b) cell phone at any point. Sgt. O'Hanlon denied seeing PO Dinuzzo smack § 87(2)(b) hand that he was using to hold his phone and denied seeing PO Dinuzzo interfere with § 87(2)(b) ability to video record. He also denied seeing the phone hit the stick shift or become damaged. Sgt. O'Hanlon testified that within a matter of seconds of him approaching the vehicle, § 87(2)(b) was removed from the vehicle, but he was unable to see whether PO Dinuzzo removed him or whether § 87(2)(b) exited the vehicle on his own.

According to Finest Message #9881632, officers are not permitted to interfere with a person's use of a recording device during a police encounter unless said person is interfering with police operations. Intentional interference such as blocking or obstructing cameras constitutes interference (17 BR).

§ 87(2)(g)

Therefore, it is recommended that **Allegation** be closed as **unsubstantiated**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation F** be closed as **unsubstantiated**.

Allegation G-Abuse of Authority: Police Officer Robert Dinuzzo threatened § 87(2)(b) with the use of force.

§ 87(2)(b) stated once PO Dinuzzo opened the vehicle door, he remained seated in his vehicle for four to five more seconds before PO Dinuzzo said, “Get out of the fucking car or I am going to take you out of the fucking car.”

§ 87(2)(b) stated that PO Dinuzzo said, “Give me your license and registration or I am going to pull you out of this vehicle through the window” to § 87(2)(b)

PO Dinuzzo did not recall saying the alleged statements and did not recall threatening § 87(2)(b) with the use of force, but stated that it was possible if § 87(2)(b) had not been non-compliant with orders to provide his identification, step out of the vehicle or put his hands on top of his vehicle.

Sgt. O’Hanlon denied hearing PO Dinuzzo make the alleged statements and denied hearing PO Dinuzzo threaten § 87(2)(b) with the use of force.

§ 87(2)(g)

Therefore, it is recommended that **Allegation G** be closed as **unsubstantiated**.

Allegation H-Discourtesy: Sergeant Brian O’Hanlon spoke discourteously to § 87(2)(b)

Video evidence depicts PO Dinuzzo opening up the drivers’ side vehicle door and saying, “Get out of the car now.” At the same time, Sgt. O’Hanlon can be heard in the background saying, “Get out of the fucking car.”



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§ 87(2)(b) stated that Sgt. O’Hanlon could be heard saying “Get the fuck out of the car” in the recording. He did not know if the statement was direction towards him or § 87(2)(b)

§ 87(2)(b) stated that when Sgt. O’Hanlon initially approached the vehicle, he did not say anything.

During his initial testimony, Sgt. O’Hanlon denied making the alleged statement. When presented with the video footage, Sgt. O’Hanlon first stated that he could hear a voice in the background say, “Get out of the car.” When presented with the video footage for a second time, Sgt. O’Hanlon denied being able to hear himself say, “Get out of the fucking car.” Once the video footage was played for a third time, Sgt. O’Hanlon stated that he could hear it “a little bit,” but could not confirm that it was his voice. Sgt. O’Hanlon reiterated that he did not recall making the alleged statement, but explained that had he made the statement, it would have been because the situation was escalating and he was attempting to deescalate the situation by having § 87(2)(b) exit the vehicle.

PO Dinuzzo did not recall Sgt. O’Hanlon making the alleged statement.

Patrol Guide Procedure 203-09 requires that officers must be courteous and respectful during their interactions with the public (06 BR).

§ 87(2)(g)

Therefore, it is recommended that **Allegation H** be closed as **substantiated**.

Allegation I-Abuse of Authority: Police Officer Robert Dinuzzo threatened § 87(2)(b) with the use of force.

§ 87(2)(b) stated that once he exited the vehicle, PO Dinuzzo instructed him to put his hands on his vehicle. When § 87(2)(b) asked PO Dinuzzo why, PO Dinuzzo said, “I’m going to make a show and body slam you on the car.”

PO Dinuzzo did not recall making the alleged statements or threatening § 87(2)(b) with the use of force, but stated that it was possible if § 87(2)(b) had not been non-compliant with orders to put his hands on top of his vehicle.

Sgt. O’Hanlon denied hearing PO Dinuzzo make the alleged statements or threaten § 87(2)(b) with the use of force.

§ 87(2)(g)

Therefore, it is recommended that **Allegation I** be closed as **unsubstantiated**.

Allegation J-Abuse of Authority: Police Officer Robert Dinuzzo questioned § 87(2)(b)

§ 87(2)(b) stated that once his hands were on top of his vehicle, PO Dinuzzo asked him if he had any weapons. § 87(2)(b) informed PO Dinuzzo that he did not have any weapons, but had a box cutter in his back left pants pocket that he used for work.

§ 87(2)(b) made no mention of PO Dinuzzo asking § 87(2)(b) if he had any weapons.

PO Dinuzzo testified that within two seconds of § 87(2)(b) putting his hands on his vehicle, § 87(2)(b) informed him that he had a box cutter in his pocket that he used for work at § 87(2)(b). PO Dinuzzo denied that he asked § 87(2)(b) if he had any weapons and testified that § 87(2)(b) supplied the information to PO Dinuzzo without being prompted.

Sgt. O’Hanlon denied hearing PO Dinuzzo ask § 87(2)(b) if he had any weapons and did not recall when § 87(2)(b) informed PO Dinuzzo about his box cutter.

§ 87(2)(g)

Therefore, it is recommended that **Allegation J** be closed as **unsubstantiated**.

Allegation K-Abuse of Authority: Police Officer Robert Dinuzzo threatened to arrest § 87(2)(b)

§ 87(2)(b) stated that as soon as he informed PO Dinuzzo about the box cutter, § 87(2)(b) told him that he was going to jail. After the box cutter was recovered, PO Dinuzzo continued to tell § 87(2)(b) that he was going to jail for possessing it and did not tell § 87(2)(b) that he was going to be arrested for anything else.

§ 87(2)(b) did not mention that PO Dinuzzo threatened to arrest § 87(2)(b) during the incident.

PO Dinuzzo did not recall telling § 87(2)(b) that he was going to jail. Although he denied that § 87(2)(b) was ever under arrest, he stated that § 87(2)(b) could have been arrested for obstructing governmental administration when he refused to provide his license. PO Dinuzzo initially denied that § 87(2)(b) could have been arrested for anything else. However, when asked

specifically about the box cutter, PO Dinuzzo stated that possessing a box cutter can be illegal if it is used to harm someone, in the commission of a crime or in an unlawful manner. PO Dinuzzo believed that § 87(2)(b) was using it unlawfully because he had not coming from or going to work, but denied that he used the box cutter in a violent manner.

Sgt. O'Hanlon denied that § 87(2)(b) was under arrest and denied hearing PO Dinuzzo threaten to arrest or tell § 87(2)(b) that he was going to jail for possessing the box cutter.

§ 87(2)(g)

Therefore, it is recommended that **Allegation K** be closed as **unsubstantiated**.

Allegation L-Abuse of Authority: Police Officer Robert Dinuzzo frisked § 87(2)(b)

Allegation M-Abuse of Authority: Police Officer Robert Dinuzzo searched § 87(2)(b)

§ 87(2)(b) stated that once he informed PO Dinuzzo that he had a box cutter in his back left pants pocket, PO Dinuzzo reached into both of his front pants pockets. In the front left pocket, he had gum and his car keys. PO Dinuzzo removed both items, held onto the car keys and put the gum back into his pocket. § 87(2)(b) did not have anything in the front right pocket. PO Dinuzzo then reached into § 87(2)(b) back left pocket and removed the box cutter. § 87(2)(b) denied that PO Dinuzzo frisked or patted anywhere else on his body.

§ 87(2)(b) stated that PO Dinuzzo patted down and went into § 87(2)(b) pockets. PO Dinuzzo testified that once § 87(2)(b) informed him that he had a box cutter in his pocket, he reached into what he believed was a front pants pocket and recovered it. PO Dinuzzo then patted down § 87(2)(b) other pockets, his waistband, and his legs to ensure that he did not have any other weapons. PO Dinuzzo did not believe that he patted down § 87(2)(b) anywhere else on his body. When asked if he reached into any additional pockets, PO Dinuzzo stated, "possibly yes" and when asked about the specific pockets he reached into, he stated most likely all of them. PO Dinuzzo believed that he recovered § 87(2)(b) license from one of the pockets, but could not recall which one specifically. PO Dinuzzo did not recall removing anything from § 87(2)(b) body other than the box cutter and the license. PO Dinuzzo patted down and reached into § 87(2)(b) pockets to ensure that he did not have any additional weapons. When PO Dinuzzo was asked what led him to believe that he had other weapons, he stated that because § 87(2)(b) possessed a box cutter, he believed he may have had other weapons on him. PO Dinuzzo did not recall observing any bulges on § 87(2)(b) PO Dinuzzo initially denied that he had any other indication that § 87(2)(b) had any weapons, but then said that when he initially approached the vehicle, § 87(2)(b) made some movements that included fidgeting his body and moving around. He could not describe the movements in any more detail. PO Dinuzzo believes in hindsight that § 87(2)(b) may have been putting the box cutter in his pocket. PO Dinuzzo denied that there were any additional reasons why he believed that § 87(2)(b) had weapons.

Sgt. O'Hanlon testified that he was aware that PO Dinuzzo had patted down and reached into § 87(2)(b) pockets, but was only informed of such after the incident and did not see the frisk or search actually occur. Sgt. O'Hanlon denied that he authorized or assisted PO Dinuzzo in the frisk or search and denied having a discussion with PO Dinuzzo regarding the possibility of weapons, the fact that § 87(2)(b) had a box cutter or regarding the fact that PO Dinuzzo was going to perform a frisk and search, prior to it actually occurring. Sgt. O'Hanlon did not recall seeing any bulges on § 87(2)(b) During this time, Sgt. O'Hanlon was on the other side of § 87(2)(b) vehicle and was dealing with § 87(2)(b) who was being argumentative and protesting why they had been stopped. There were no additional reasons why he did not witness the frisk

and the search. Although PO Dinuzzo did inform Sgt. O'Hanlon that a box cutter was recovered later on, Sgt. O'Hanlon did not know where it was recovered from specifically.

In People v. Feldman 2014 NY Slip Op 1377 (2014), the court held that the totality of information could not justify a frisk, even if the individual action could be innocuous, and in this case, the officers' earlier observation of furtive movements and attempting to stuff something under the seat, the officers' observation that something was protruding from the same seat, and that another civilian in the vehicle began a physical struggle with another officer, cause the officer to reasonably fear for his safety and reasonably believe that the defendant might possess a weapon (05 BR). According to People v. DeBour 40 NY 2d 1010 (1976), to justify a search, an officer must have probable cause to believe that the person has committed a crime (04 BR).

§ 87(2)(g)

Therefore, it is recommended that
Allegation L be closed as **substantiated**.

§ 87(2)(g)

Therefore it is recommended that
Allegation M be closed as **substantiated**.

Allegation N-Abuse of Authority: Sergeant Brian O'Hanlon searched the vehicle in which § 87(2)(b) was an occupant.

Allegation O-Abuse of Authority: Police Officer Robert Dinuzzo searched the vehicle in which § 87(2)(b) was an occupant.

Allegation P-Abuse of Authority: Police Officer Robert Dinuzzo searched § 87(2)(b)'s bag.

§ 87(2)(b) stated that once he was handcuffed, he observed PO Dinuzzo lean into the driver's side of his vehicle. PO Dinuzzo shined his flashlight around the front of the vehicle, moved things around and looked under the floor mats and the seats, but did not open anything such as the center console. § 87(2)(b) remained facing toward the trunk and never lost sight of PO Dinuzzo as he was searching his vehicle. After he was done searching the front of the vehicle, PO Dinuzzo opened the passenger side door on the driver's side and looked under the seat. He then reached into the Barney's shopping bag that was on top of the back seat, which contained a pair of sneakers that § 87(2)(b) had just purchased. PO Dinuzzo flipped the bag over, causing the sneakers to fall onto the seat and the shopping bag and the receipts onto the floor. PO Dinuzzo searched the vehicle for approximately thirty seconds. He did not remove anything from the vehicle and closed both of the vehicle doors once he had completed the search.

PO Dinuzzo testified that he leaned into and searched § 87(2)(b) vehicle around the drivers' seat and in the back seat area. PO Dinuzzo stated that it was also possible that he looked underneath the floor mats, but he denied searching anywhere else in the vehicle. PO Dinuzzo searched the vehicle because he wanted to ensure that there were no additional weapons in the vehicle. PO Dinuzzo believed there may be weapons in the vehicle because he had recovered a box cutter from § 87(2)(b) person. He denied that he had any indication that § 87(2)(b) had any weapons prior to him mentioning the box cutter and denied that there were additional reasons why he believed that there was a weapon in the vehicle at this time. PO Dinuzzo also searched a closed shoe box or bag in the back seat which contained clothing or a pair of sneakers to ensure that it did not contain any weapons. PO Dinuzzo denied recovering or removing anything from the vehicle.

Sgt. O'Hanlon testified that when he first removed § 87(2)(b) from the vehicle, he leaned his head into the front passenger side door and briefly searched the floor area near where § 87(2)(b) and § 87(2)(b). He did not recall searching anywhere else in the vehicle. Sgt. O'Hanlon searched the vehicle at this time because § 87(2)(b) and § 87(2)(b) made furtive movements when they initially stopped them, which included bending over and moving around in the front area of the vehicle. Sgt. O'Hanlon was unable to describe the movements in more detail because it was hard to see and he could not tell what they were doing, but stated that they could have been looking for registration or dropping things onto the floor. Sgt. O'Hanlon also stated that he searched the vehicle because § 87(2)(b) and § 87(2)(b) had been evasive. When asked how § 87(2)(b) was being evasive, Sgt. O'Hanlon clarified that he was combative and hostile because he was questioning why they had been pulled over. Sgt. O'Hanlon added that § 87(2)(b) was evasive because he refused to provide his identification; however, he denied that he saw § 87(2)(b) actually refuse to provide his identification and was only informed of such by PO Dinuzzo. Sgt. O'Hanlon did not recall if he was informed of § 87(2)(b) refusal before or after he searched the vehicle. He denied there were any additional reasons he looked into the vehicle at this time.

Although Sgt. O'Hanlon did observe PO Dinuzzo search the vehicle in the area surrounding the front drivers' seat, he denied that he authorized PO Dinuzzo to conduct the search and did not recall having a discussion with him about it. Sgt. O'Hanlon did not recall if PO Dinuzzo searched anywhere else in the vehicle and did not recall him searching the back of the vehicle. He denied that he authorized PO Dinuzzo to search a bag or box in the back of the vehicle and did not recall PO Dinuzzo doing so. During this time, Sgt. O'Hanlon stood near the trunk and spoke to § 87(2)(b) and § 87(2)(b). Sgt. O'Hanlon denied that there was anything about the vehicle, § 87(2)(b) or § 87(2)(b) that led him to believe there was a weapon inside the vehicle. PO Dinuzzo searched the vehicle at this time because of the furtive movements that he previously described and because a box cutter had been recovered. He denied that there were any additional reasons why the vehicle was searched.

According to People v. Baksh, 2014 NY Slip OP 112, an officer may conduct a limited search of a vehicle if there is a substantial likelihood that a weapon, which presents an actual and specific danger to the officers' safety, is located within the vehicle (03 BR). People v. Theodis, 155 A.D.2d 339 (1st Dept. 1989) states that once the occupants have been removed from a vehicle, any immediate threat to the officers' safety has been removed, and they therefore, would require further justification to search the passenger's compartment of the vehicle or any container therein (13 BR). Patrol Guide Procedure 203-09 requires that officers must be courteous and respectful (06 BR).

§ 87(2)(g)

Therefore, it is recommended that **Allegations N-P** be closed as **substantiated**.

Allegation Q-Abuse of Authority: Sergeant Brian O’Hanlon interfered with § 87(2)(b)’s use of a recording device.

Allegation R-Abuse of Authority: Sergeant Brian O’Hanlon threatened to damage § 87(2)(b)’s property.

Allegation S-Abuse of Authority: Sergeant Brian O’Hanlon threatened to arrest § 87(2)(b)

§ 87(2)(b) stated that once he was removed from the vehicle, he took out his phone and attempted to record; however, Sgt. O’Hanlon told him that he could not record him and that if he continued to record, he would break his phone. When § 87(2)(b) asked Sgt. O’Hanlon why he could not record, Sgt. O’Hanlon told him that he could be arrested for obstructing governmental administration.

Sgt. O’Hanlon did not recall if § 87(2)(b) took out his cell phone or attempted to record. He did not recall telling § 87(2)(b) that he was not permitted to record or that he could be arrested for obstructing governmental administration for recording. Sgt. O’Hanlon denied that he interfered with § 87(2)(b)’s ability to video record or told § 87(2)(b) that he would break his phone if he continued.

PO Dinuzzo did not recall § 87(2)(b) having his phone out or attempting to record. He denied seeing Sgt. O’Hanlon interfere with § 87(2)(b)’s ability to video record and did not recall him telling § 87(2)(b) that if he continued to record, that he would break his phone or be arrested for obstructing governmental administration.

§ 87(2)(g)

Therefore, it is recommended that **Allegations Q-S** be closed as **victim uncooperative**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

[Redacted text block containing multiple lines of blacked-out information]

Squad: 12

Investigator: _____ Chelsea Yogerst _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date